

All India State Bank of India Staff Federation

Registered under the Trade Unions Act 1926 - Registration No. B-2333 (AFFILIATED TO NCBE)

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All letters to be addressed to the General Secretary

CIRCULAR NO.04

Date : 19TH APRIL 2022

TO ALL AFFILIATES:

Dear Comrades,

UNIFORM TRANSFER POLICY FOR AWARD STAFF (2022)

We give below the long awaited Uniform Transfer Policy which has been prepared after mixing the Career Progression Scheme, 5 year Transfer Policy and Redeployment Transfer Policy. Comrades, as you know that All India State Bank of India Staff Federation has demanded the Single Transfer Policy after combining the all the Transfer Policies such as Career Progression, 5 Year and Redeployment Policy because of the view of the Federation that there are frequent transfers of employees in one or the other policy and are not getting the minimum stay of 5 years at a particular Branch/Office.

2. Accordingly, a team was constituted by the Federation in the year 2010 and committee gave its report which was submitted to the Bank long before and since then we had been demanding from the Bank to prepare a Single Transfer Policy by combining all the 3 Transfer Policies with an aim that an employee gets a minimum stay of 5 years at a particular branch. Management was also demanding that a large chunk of employees is out of the ambit of the 5 years transfer policy and they also wanted to include the same as per the different guidelines from the Government of India etc. from time to time.

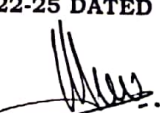
3. After taking into consideration all these points the Management agreed to have a Uniform Transfer Policy by combining all the existing transfer policies with an aim that the Transfers are minimized and majority of the staff is moved from one branch to another branch after having a minimum stay of 5 years except in the case of key holders which are required to be posted at least one in each branch who can take the charge of cash.

4. Comrades, we reached a unanimity about the different points of the Policy in year 2020 but due to COVID pandemic that spread throughout the World, so the Bank kept the transfers to the minimum level. After the pandemic came under control an Memorandum of Settlement was signed on Uniform Transfer Policy at GOA, the salient features are given hereunder:

UNIFORM TRANSFER POLICY FOR AWARD STAFF (2022)

1.	Applicability	There will be <u>one Uniform Transfer Policy</u> , i.e., 5-years Transfer Policy and it will be applicable at each and every Centre, irrespective of number of branches at a Centre.
2.	Cut-off date for Career Progression Scheme	1st June every year
3.	Age limit for Career Progression	No upper age limit

RE-ISSUED BY STATE BANKS' STAFF UNION(K)
AS CIRCULAR No.08/2022-25 DATED 19.04.2022


GENERAL SECRETARY

4.	Cut-off date for preparation of list of all eligible employees for in-cadre higher appointment by Circles	15 th April every year
5.	Cut-off date for "opt-out" from in-cadre promotion for a particular promotion year	30 th April every year
6.	Cut-off date for Identification of post and issue of offer for Career Progression	15 th May every year
7.	Cut-off date for relief of employees who have accepted in-cadre higher appointment under Career Progression Scheme	Latest by 31 st May
8.	Period of debarment in case of refusal of offer of in-cadre higher appointment by the employee	3 years
9.	Transfer on acceptance of in-cadre Career Progression	Transfer after in-cadre promotion will not be mandatory if stay at Branch/ Office is less than 5 years. However, in case of promotion to Chief Associate/ Special Associate, if no vacancy* exists at the present Branch of posting, such employee will be transferred to another Branch within the centre. If no vacancy* exists at the centre, the employee will be transferred to the nearest branch outside the centre within RBO.
10.	Special Pay linked to higher position	In-cadre promotions will be strictly effective from 1 st June every year and the Special Pay and allowances related to the higher position will be payable from this date. In case of transfer, these allowances will be paid w.e.f. 1 st June, but only after the employee joins at the new Branch. However, the Clerical employee, on in-cadre promotion, will be eligible for perks related to the role of Cash In-charge only from the date of assuming actual charge.

(* Vacancy means Cash or Accounts Departments)

11.	Time gap for offer of Career Progression to the next higher grade	An employee must put in at least 1 year service in the existing grade before being offered promotion to next higher grade.
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AGE CRITERIA

12.	Maximum Age for transfer: (a) Within Centre (b) Outside Centre	A clerical employee, on completion of 5 years of stay at a Branch/Office as on 1 st June, will be compulsorily transferred to another Branch/ Office (except under exempted category). Age limits will be: For transfer within Centre : • All employees up to the age of 57 years. For transfer outside Centre : • Male employee – 55 years • Female employee – 54 years
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PROPORTION OF STAFF STRENGTH TO BE TRANSFERRED

13.	Maximum proportion of staff strength at a branch to be transferred	Maximum 50% of staff strength at a branch may be transferred at a time, ensuring continuity in customer service. However, in case there is only one employee in the Branch and has completed 5 years of stay, then he/she will be transferred locally.
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MAXIMUM STAY OUTSIDE THE CENTRE

14.	Maximum Period of stay outside the centre	• For Normal centres, maximum period of stay would be 3 years. • For Difficult centres, maximum period of stay would be 2 years. However, if an employee wishes to continue beyond such prescribed maximum period, on specific request, he/ she would be allowed a maximum stay of 5 years.
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REPATRIATION TO HOME CENTRE

15.	Guidelines for repatriation to Home Centre	Employees completing 3 years of stay at Branches / Offices outside the Centre (2 years at Difficult Centres*) as on 1 st June, would be transferred back to Home Centre automatically on 1 st June and would be replaced by: (a) A willing employee posted at any Branch/ Office of RBO, OR (b) Employees in the equivalent grade posted at the Centre and having longest stay.
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'Centre' for purposes of this policy is defined as a town or city up to the municipal limits or an urban agglomeration.

* **'Difficult Centre'** would mean a centre classified as "Difficult" for the purpose of transfer of Supervising Staff as per the existing norms prescribed by the Government of India.

PROVISIONS

16.	Reimbursement of HRA at outside centre	Reimbursement of HRA up to 150% of normal HRA for the period of posting outside the Centre, other than on request, as per the 11 th Bipartite Settlement (only on production of rent receipt).
17.	Discomfort Allowance	Payable as per existing Bipartite Settlement provisions, only for the period of posting outside centre.
18.	Policy for PWD Employees	As per the Govt guidelines, PWDs and employees affected by serious ailments, as well as Caregivers shall continue to be exempted from outside Centre postings.

Persons with Disabilities: Government of India guidelines as contained in our circular no. CDO/PM/15/SPL/67 dated 25.04.2000 are as under:

- a. On their recruitment, endeavor should be made as far as possible to allot the selected physically handicapped candidates to the branches located in or near their town or village.
- b. Subject to the administrative exigencies, the physically handicapped employees should normally be exempted from the routine periodical transfers.
- c. Such persons should not normally be transferred even on promotion if a vacancy exists in the same branch/office, Town/City. When transfer of such employee becomes inevitable on promotion to a place other than his/her original place of appointment due to non-availability of vacancy, it should be ensured that such employees are kept nearest to their original place of posting and in any case are not transferred to far off/remote place.
- d. Such concessions need not be made available to such of the physically handicapped employees who are transferred on the grounds of disciplinary actions due to involvement in fraudulent transactions etc.

Employees affected by serious ailments: Employees affected by serious ailments will be posted at a centre where treatment of serious ailments is available. Serious ailments would mean illness like terminal cancer, kidney failure/ailment requiring dialysis, heart disease requiring immediate bypass surgery or an ailment which is classified as life threatening. Each case will be decided on case-to-case basis. The appropriate authority to decide such cases is the General Manager of the respective Network.

Caregiver of Disabled Dependents: In terms of e-circular no. CDO/P&HRD/IR/51/2014-15 dated 21.10.2014 and 34/2015-16 dated 15.07.2015, certain relaxations are given in case of transfer/posting of employees who are caregiver of disabled dependents. The instructions contained in those e-circulars are as under:

- a. As per the GOI guidelines vide F.NO. 3/8/2014-Welfare dated 28.07.2014 issued by Department of Financial Services, Ministry of Finance, a Government servant who is also a caregiver of disabled child may be exempted from the routine exercise of transfer/rotational transfer subject to the administrative constraints. The word disabled includes: (i) Blindness or low vision (ii) Hearing impairment (iii) Locomotor disability or cerebral palsy (iv) Leprosy cured (v) Mental retardation (vi) Mental illness (vii) Multiple disabilities (viii) Autism (ix) Thalassemia (x) Haemophilia.

- b. In view of the said GOI guidelines the concession as available to physically handicapped employees as mentioned above, is also available to our employees who are also caregiver of disabled dependents, i.e. disabled dependent children and spouse (even though they are not financially dependent). However, they will have to submit copy of the physical disability certificate issued by the designated authority in respect of their disabled dependent, to the Bank. For that purpose, disabled will mean as defined by Government of India and as mentioned above.
- c. Rotational transfer of such employees may be done, i.e. they may be transferred within the centre keeping in view CVC guidelines.
- d. In case no vacancy exists at present centre of posting, on promotion these employees may be transferred to other centres, on their choice of place, where required medical facilities are available.

HRA & Discomfort Allowance: To mitigate the hardship of the employees who retain their families at the places from where they were transferred and to compensate part of expenditure to be incurred in securing accommodation at place of posting outside the centre, they may be reimbursed with the house rent paid at the new place up to 150% of normal HRA (subject to production of rent receipt)* and a Discomfort Allowance subject to the maximum of the following amounts on certificate basis#:-

a. Clerical staff : Rs. 2300/- p.m.

b. Subordinate staff : Rs. 1400/- p.m.

(* In terms of 11th Bipartite Settlement dated 11.11.2020)

(# In terms of e-Circular No. CDO/P&HRD-IR/66/2020-21 dated 21.12.2020)

However,

- a. Employees who continue to occupy the quarters provided by the Bank even after transfer will not be eligible for any HRA.
- b. The Discomfort Allowance and Higher HRA will be withdrawn on the transfer of the employee to his/her original place of posting or to any other place at his/her request.
- c. If an employee voluntarily continues after the prescribed period (i.e. beyond 3 years outside the Centre/ 2 years in a Difficult Centre), payment of higher HRA and Discomfort Allowance will be stopped immediately at the end of the prescribed stay at that Centre.

EXEMPTED CATEGORIES

19	Policy for Federation / Circle level Office Bearers	<u>Federation Level:</u> President, General Secretary, Senior Vice-Presidents, Treasurer of All India State Bank of India Staff Federation. <u>Circle Level:</u> All members of Circle/ Central/ Working/Executive Committee of the recognised Circle Union will be exempted under the Policy. <i>Union Office Bearers may be considered for posting at LHOs/AOs/RBOs/Branches as per request of the Circle Union/Association.</i>
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20	Policy for Local Unit Secretaries	Local Unit Secretaries will no longer be exempted from transfer. They will be transferred like other employees on completion of 5 years at a Branch/ Office. In case there is only one branch at the centre, then the transfer rule for Single Branch Centres will apply.
21	Single Branch Centres	No exemption from transfer will be given to employees who are posted at a centre, where there is only one Branch of the Bank. Employees having completed 5 years of stay at such a centre where there is only one Branch/Office of SBI, will be transferred to a nearby Branch in the RBO, where vacancy exists.

Clerical Cadre employees who have been identified by the Bank/ selected / trained for selling/ marketing various products/services or other activities etc. will not be subjected to routine transfers, unless decided otherwise by the Corporate Centre.

AREA OF TRANSFER

22	Employees posted at LHO/ AO/ BPR Outfit/ CAG/ CCG/ SARG/ and other offices including Corporate Centre Establishments	In cadre Promotion / Transfer would be effected by the local RBO. Staff posted at LHO/ Administrative Offices/ BPR outfits/ CAG/ CCG/ SARG Branches/ Corporate Centre Establishments are considered part of local RBO for the purpose of Transfer Policy and Career Progression.
23	Transfer of Chief Associates	In case of surplus in a Region, a Chief Associate can be transferred even to another Network within 100 km from the present place of posting, as at present.
24	Transfer of Other Categories of Staff	Other categories of Clerical cadre in certain difficult terrain Circles where the geographical area of RBOs is too large, the area of such RBO shall be notionally divided into small zones in consultation with the Circle Union/ Association.

PLACEMENT

25	Placement of Chief/ Special Associates	All positions of cash in-charge should be filled up by Chief Associates/ Special Associates only. Bank will decide on the posting as per administrative requirements, as Chief/ Special Associate are also required in CCPC/ Locker Operations/ DL Sanction/ Passing work etc. Only in exceptional situations where number of Chief Associates/ Special Associates in an AO is less than the vacancies of Cash-in-Charge, then the senior most employee at the Branch may be assigned the charge of cash and in such cases, they would be eligible for Special Pay/ Allowance and other monetary benefits as applicable to Chief / Special Associates respectively.
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Job Rotation Policy

There will be job rotation from one desk to another at intervals of 6 months.

Authority Structure for Transfer / Posting of Award Staff

As per the Scheme of Delegation of Administrative Powers.

OTHER CONDITIONS

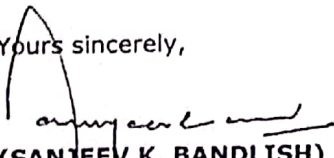
- a. The Bank may at its discretion, identify number of employees, category and designation wise, to be redeployed/transferred from each branch/office to meet its requirement arising on account of changes in work and work processes and to meet the needs of handling new items of work, operational efficiency, productivity and to meet deficit in staff complement identified by the Bank.
 - b. Transfer will be done on the basis of longest stay at a branch or a centre, as the case may be. In other words, first to come will be first to go, A branch/office and centre wise list in descending order of length of stay will be kept ready, duly verified and updated.
- ***This Policy will replace all the existing Agreements/Provisions relating to transfer. An Agreement has been signed by the Bank Management and the Staff Federation on 18.02.2022.***
 - ***A Single 5-Year Policy will be applicable for Subordinate Staff, with no outside the Centre deployment, except in case of administrative requirement. However, in case there is surplus at a centre, the Subordinate employees can be transferred within the Region. In case there is surplus in the Region, then they can be transferred within the AO.***
 - ***The policy comes into force from FY 2022-2023 and will be reviewed after 5 years.***

The above-mentioned transfer policy is without prejudice to the provisions of the Sastry Award (para 535 & 536) and as retained in Desai Award. The Sastry Tribunal has observed that transfers are rendered necessary by the exigencies of administration and that proper view to take it that transfers are normal incidents of the workers of the Bank and they must be left to the discretion of those who guide the policy.

Nothing in this Policy will affect the Management's right to make transfers on administrative grounds within the provisions of the Award.

With revolutionary greetings,

Yours sincerely,


(SANJEEV K. BANDLISH)
GENERAL SECRETARY

NATIONAL CONFEDERATION OF BANK EMPLOYEES.....	ZINDABAD
UNITED FORUM OF BANK UNIONS.....	ZINDABAD
OUR SOLIDARITY.....	ZINDABAD
OUR UNITY.....	ZINDABAD
INQUILAB.....	ZINDABAD